

Saurabh Kumar Sanjay @ Saurabh Kumar vs The State Of Bihar on 2 January, 2024

Author: Rajeev Ranjan Prasad

Bench: Rajeev Ranjan Prasad

IN THE HIGH COURT OF JUDICATURE AT PATNA

CRIMINAL REVISION No.434 of 2021

Arising Out of PS. Case No.- Year-0 Thana- District- Patna

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Saurabh Kumar Sanjay @ Saurabh Kumar S/o- Late Trilioki Nath Gupta
R/M- Morcha Road, Nehru Tola, P.O. - Begampur, P.S. - Chowk, Patna City
Distt. - Patna.

Versus

1. The State of Bihar
2. Smt. Priyanka Kumari @ Dolly D/o- Sri Baiju Gupta R/M- Sakurabad, P.S.
Jehanabad, Distt. - Jehanabad.

... .. Respondents

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Appearance :

For the Petitioner/s : Mr. Vijay Kumar Sinha, Advocate

For the Respondent/s : Mr. Shailendra Kumar, APP

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CORAM: HONOURABLE MR. JUSTICE RAJEEV RANJAN PRASAD

ORAL ORDER

3 02-01-2024

Heard learned counsel for the petitioner in limitation as well as admission matter.

2. The I.A. No. 1 of 2021 has been filed seeking condonation of delay of one year four months in filing of the revision application.

3. Considering that the impugned order is dated 17.12.2019 passed by learned Principal Judge, Family Court, Patna in Matrimonial Case No. 1226 of 2016 and only three months thereafter the corona period begun, this Court is of the considered opinion that the reasons shown are sufficient to condone the delay.

4. The delay is condoned.

Patna High Court CR. REV. No.434 of 2021(3) dt.02-01-2024

5. While hearing the application on merit, this Court finds that the present revision application has been preferred against an interim order passed by the learned Principal Judge, Family Court under Section 24 of the Hindu Marriage Act. The learned court has been pleased to pass an order directing an interim maintenance of Rs. 7,000/- and cost of litigation at Rs. 5,000/-.

6. Learned counsel for the petitioner, at this stage, submits that he would seek permission to convert this application in a civil miscellaneous application under Article 227 of the Constitution of India.

7. As prayed, this Court allows the prayer made on behalf of the petitioner to convert this application under Article 227 of the Constitution of India at the risk of the petitioner.

8. The office shall do the needful.

(Rajeev Ranjan Prasad, J) Rishi/-

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